

Syllabus

provided compensation for injuries suffered by aliens outside the United States, it has done so by empowering Executive Branch officials to make payments under circumstances found to be appropriate. See, *e. g.*, Foreign Claims Act, 10 U. S. C. §2734. Congress’s decision not to allow suit in these contexts further indicates that the Judiciary should not create a cause of action that extends across U. S. borders either. Pp. 109–113.

(4) These factors can all be condensed to the concern for respecting the separation of powers. The most important question is whether Congress or the courts should create a damages remedy. Here the answer is Congress. Congress’s failure to act does not compel the Court to step into its shoes. Pp. 113–114.

885 F. 3d 811, affirmed.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 114. GINSBURG, J., filed a dissenting opinion, in which BREYER, SOTOMAYOR, and KAGAN, JJ., joined, *post*, p. 118.

Stephen I. Vladeck argued the cause for petitioners. With him on the briefs were *Leah M. Litman*, *Cristobal M. Galindo*, *Robert C. Hilliard*, *Marion M. Reilly*, *Steve D. Shadowen*, and *Matthew C. Weiner*.

Randolph J. Ortega argued the cause for respondent. With him on the brief were *Louis Elias Lopez, Jr.*, and *Gabriel Perez*.

Deputy Solicitor General Wall argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Assistant Attorney General Mooppan*, *Morgan L. Ratner*, *Mark B. Stern*, *Katherine Twomey Allen*, *Mary Hampton Mason*, and *Siegmund F. Fuchs*.*

*Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union et al. by *Cody Wofsy*, *Cecillia Wang*, *Lee Gelernt*, *Omar C. Jadwat*, *David D. Cole*, *Andre I. Segura*, and *Maria Martinez Sanchez*; for Amnesty International USA et al. by *Hope Metcalf* and *John W. Whitehead*; for Brady by *Sean A. Lev*, *Joshua Hafenbrack*, *Frederick Gaston Hall*, and *Jonathan E. Lowy*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for